

SYNTHETIC TRAINING RECORD — NOT FILED — FICTIONAL PARTIES AND
COUNSEL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-26-1427

ASTERGLEN FREIGHT SOFTWARE, INC., Plaintiff–Appellant,

v.

COPPER KESTREL LOGISTICS, LLC, and MERIDIAN SILT HOLDINGS, LLC,
Defendants–Appellees.

OPENING BRIEF OF APPELLANT

Appeal from synthetic Civil Action No. SYN-25-0117 in the Eastern District of Virginia.

Filed in the exercise: April 29, 2026.

Corporate disclosure

Asterglen is a fictional privately held corporation. No publicly held company owns ten percent or more of its fictional stock. No publicly held company has a direct financial interest in the outcome. This is not a real disclosure.

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Principal authorities: 28 U.S.C. § 1291; Fed. R. Civ. P. 54(b); *Kinsale Insurance Co. v. JDBC Holdings, Inc.*, 31 F.4th 870 (4th Cir. 2022); *McPherson v. Patton*, No. 23-1938 (4th Cir. Oct. 15, 2024) (unpublished).

Jurisdictional statement

The district court had diversity jurisdiction. Appellant invokes 28 U.S.C. § 1291 and Rule 54(b). The district court dismissed Count I with prejudice, then granted Asterglen's Rule 54(b) motion and directed entry of a separate partial judgment. JA24-33, JA40-41. Count II and a counterclaim remain. JA27-28.

The judgment was entered February 4, 2026. JA41, JA46. The notice was filed March 3, within the ordinary thirty-day period. JA42-43, JA46. No tolling motion was filed. JA46.

Asterglen acknowledges that the order does not recite "there is no just reason for delay." JA40. Appellees contend that omission defeats finality. Asterglen preserves its contrary argument below.

Issue presented

Whether the grant of a motion that expressly requested the Rule 54(b) determination, followed by a separate partial judgment fully disposing of Count I, is sufficient to support jurisdiction despite the order's failure to repeat the no-just-reason language.

If jurisdiction exists: whether Section 9.2 barred Count I as a matter of law.

Statement of the case

The Pilot License limited BeaconRoute to twelve terminals and required written notice plus a fifteen-day cure before termination or breach damages. JA7. Copper Kestrel configured forty-one identifiers after Asterglen declined to sign an expansion request. JA7-8. The parties dispute what Asterglen's project manager said on July 8. JA15.

Asterglen's July 22 email terminated access and demanded \$480,000 without allowing fifteen days to cure. JA8, JA15. Asterglen sued Copper Kestrel for breach and Meridian Silt for interference; Copper Kestrel counterclaimed over the disablement. JA5-12, JA13-23.

The district court held Section 9.2 was a condition precedent, dismissed Count I with prejudice, and left Count II and the counterclaim pending. JA24-28. Asterglen moved under Rule 54(b), requested the exact express determination, and addressed the *Braswell* considerations. JA29-33. Appellees opposed and warned that a bare grant would be insufficient. JA34-39.

The court's entire operative order granted the motion and directed entry of judgment. JA40. The separate judgment disposed only of Count I. JA41.

Summary of argument

Count I was finally resolved: dismissal with prejudice left no damages or relief to determine on that claim. This case therefore differs from a liability-only ruling.

Asterglen accepts that Rule 54(b) uses an express-determination requirement and that *Kinsale* calls for case-specific findings. It argues, however, that the order's grant of a motion whose requested relief was an express no-just-reason determination incorporated that request, and the separate judgment made the court's intent unmistakable.

Asterglen recognizes that *McPherson* dismissed an appeal after a paperless grant and partial judgment omitted the express determination. That unpublished disposition is nonbinding. Asterglen asks the Court to distinguish it because the motion here addressed each factor and the merits order invited that exact submission.

If the Court reaches the merits, Asterglen argues a reasonable factfinder could find waiver or futility and that summary judgment should be reversed.

Argument

I. Count I was an ultimate disposition of an individual claim

Rule 54(b)'s first step asks whether an individual claim is finally disposed. *Kinsale*, 31 F.4th at 873. The order dismissed Count I with prejudice and left no amount of damages or other relief on that claim unresolved. JA27-28. Whatever relationship exists among the facts, this is not a partial liability ruling.

II. Asterglen contends the grant incorporated the requested determination

The motion requested both the express determination and findings. JA29, JA32-33. The order granted that motion and directed a separate judgment. JA40-41. Asterglen argues those documents should be read together.

The argument faces Rule 54(b)'s text and *McPherson*. Asterglen preserves that *McPherson* is unpublished and contends this record contains a factor submission absent from its paperless order. But Asterglen does not identify any sentence in the order itself saying there is no just reason for delay. Nor does it contend a party's reasons are judicial findings.

III. Alternatively, remand for findings rather than dismissal

If the certification is inadequate, Asterglen asks for a limited remand permitting findings while retaining appellate jurisdiction. Appellees respond that no final decision exists and dismissal is required. Asterglen acknowledges *McPherson* dismissed and remanded on materially similar omitted language.

IV. Merits, only if jurisdiction exists

The July 8 statement creates a dispute over waiver, and Copper Kestrel's July 22 insistence that the deployment was authorized permits a factfinder to assess whether a cure notice would have been futile. JA7-8, JA15. Asterglen contends the district court improperly treated Section 9.2 as an absolute bar without resolving those disputes.

Appellees answer that Section 11.3 required signed waivers and that Copper Kestrel offered to reduce active terminals, defeating futility. The Court should reach none of these merits questions unless it first confirms jurisdiction.

Conclusion

Asterglen asks the Court to exercise jurisdiction and reverse the Count I judgment, or alternatively remand for express Rule 54(b) findings. If the express-determination requirement is unsatisfied, the Court should state that it does not reach the merits.

Request for oral argument

Asterglen requests oral argument because the interaction among the motion, short order, and separate judgment warrants examination. Appellees contend controlling text and authority make argument unnecessary. The authored court later decides unanimously on the briefs.

/s/ Morgan Example, fictional counsel

Certificate: this exercise brief is within its intended page limit and was electronically served April 29, 2026. No real filing or service occurred.